

STAFFING & MANPOWER DEPLOYMENT SERVICES AGREEMENT

(Master Services Agreement)

To be executed on stamp paper of the value prescribed under the applicable Stamp Act, and signed on each page by the authorised representatives of both Parties.

This Staffing & Manpower Deployment Services Agreement (the "Agreement") is made and executed at Gurugram, Haryana on this ____ day of _____, 20__ (the "Effective Date"),

BY AND BETWEEN

THIRD WAVE LABS PRIVATE LIMITED, a company duly incorporated under the Companies Act, 2013, bearing CIN U62099HR2026PTC146360 and PAN AAHCT2237Q, having its registered office at Shop No R-02/06, Tower A3, M3M Woodshire, Sector 107, Gurugram – 122006, Haryana, carrying on business under the brand name "**Switch**" (hereinafter referred to as the "**Service Provider**" or "**Switch**", which expression shall, unless repugnant to the context or meaning thereof, be deemed to include its successors-in-interest and permitted assigns) of the **FIRST PART**;

AND

[**CLIENT NAME**], a [company / partnership firm / limited liability partnership / sole proprietorship / other entity] constituted under applicable law, bearing registration / identification no. [_____] (CIN / LLPIN / Firm Reg. / GSTIN, as applicable) and PAN [_____] , having its principal place of business at [**CLIENT ADDRESS**], and carrying on business (including, where applicable, as a restaurant or food-service establishment) (hereinafter referred to as the "**Client**", which expression shall, unless repugnant to the context or meaning thereof, be deemed to include its proprietor, partners, successors-in-interest and permitted assigns) of the **SECOND PART**.

The Service Provider and the Client are hereinafter referred to individually as a "**Party**" and collectively as the "**Parties**".

RECITALS

A. WHEREAS the Service Provider is, inter alia, engaged in the business of providing staffing, manpower supply, deployment, payroll and technology-enabled workforce management services.

B. AND WHEREAS the Client is desirous of engaging the Service Provider to source, onboard, deploy and administer personnel for the Client's operational requirements, and the Service Provider has represented that it possesses the requisite expertise, licences and resources and has agreed to render such services upon the terms and conditions hereinafter appearing.

NOW, THEREFORE, in consideration of the mutual covenants, representations and undertakings set forth herein, and for other good and valuable consideration the receipt and sufficiency of which is hereby acknowledged, the Parties, intending to be legally bound, hereby agree as follows:

1. DEFINITIONS AND INTERPRETATION.

- "**Deployed Personnel**" means the workers, staff or personnel sourced, employed, engaged and deployed by the Service Provider to render services for the Client's benefit, whether at the Client's premises or as otherwise directed.
- "**Services**" means the sourcing, screening, onboarding, deployment, payroll disbursement, statutory administration and workforce-management services described in Clause 2 and each applicable Work Order.
- "**Work Order**" means a written order in the form of **Annexure B** issued by the Client specifying the number of personnel, roles, skills, location, duration and applicable rates.
- "**Service Charges**" means the fees and charges payable by the Client to the Service Provider as set out in **Annexure A**.
- "**Applicable Law**" means all statutes, rules, regulations, notifications and orders in force in India, including the Labour Codes and all labour and employment legislation.

6. Interpretation: the singular includes the plural and vice versa; headings are for convenience only; references to a statute include amendments and re-enactments thereof; and the Annexures form an integral part of this Agreement.

2. SCOPE OF SERVICES.

1. The Service Provider shall source, screen, onboard, deploy and administer Deployed Personnel in accordance with the requirements specified in each Work Order.
2. The Service Provider shall conduct reasonable background, identity and reference verification of the Deployed Personnel prior to deployment.
3. The Service Provider shall manage the payroll, attendance, statutory contributions, records and general administration of the Deployed Personnel through its own systems and technology platform.
4. The Client shall provide a safe and lawful working environment, day-to-day operational supervision, and such site-specific instructions as are reasonably necessary for the Deployed Personnel to perform their duties.

3. TERM. This Agreement shall commence on the Effective Date and, unless terminated earlier in accordance with Clause 13, shall remain in full force and effect for an initial period of **one (1) year**, and shall thereafter stand automatically renewed for successive periods of one (1) year each, unless either Party gives written notice of non-renewal at least **thirty (30)** days prior to the expiry of the then-current term.

4. ONBOARDING & DEPLOYMENT.

1. Upon receipt of a Work Order, the Service Provider shall use commercially reasonable endeavours to deploy suitable personnel within **seven (7)** working days.
2. The Client may interview and assess proposed personnel and may decline any individual it reasonably considers unsuitable, whereupon the Service Provider shall propose a suitable replacement.
3. All Deployed Personnel shall, as a condition of deployment, be onboarded onto the Service Provider's technology platform and shall have executed the Worker Onboarding, Payout & Technology Consent set out in **Annexure C**.

5. EMPLOYER-EMPLOYEE RELATIONSHIP.

1. The Deployed Personnel shall at all times and for all purposes remain the employees / personnel of the **Service Provider** alone, and shall under no circumstances be construed, deemed or treated as the employees, workmen or agents of the Client.
2. Nothing contained in this Agreement shall be construed to create any relationship of employer and employee, principal and agent, partnership or joint venture between the Client and the Deployed Personnel, or between the Parties.
3. The Service Provider shall be solely and exclusively responsible for the recruitment, engagement, supervision, discipline, remuneration, transfer and termination of the Deployed Personnel.

6. WORKER REMUNERATION & PAYOUT (THROUGH SWITCH).

1. All wages, salary, stipend, allowances, incentives and any other remuneration or payout due to the Deployed Personnel (collectively, the "**Worker Payout**") shall be computed, processed and disbursed **exclusively by and through the Service Provider (Switch)** via its own payroll and technology systems.
2. The Client shall **not** make any direct payment of wages or remuneration of any nature to any Deployed Personnel, and shall route all sums payable in respect of the Deployed Personnel solely to the Service Provider in accordance with Clause 8.
3. The Service Provider warrants that it shall disburse the Worker Payout to the Deployed Personnel within the timelines prescribed under Applicable Law, and shall maintain records and proof of such disbursement, which shall be made available to the Client on reasonable request.
4. The Service Provider shall be solely responsible for all deductions, contributions and withholdings from the Worker Payout as required under Applicable Law.

7. STATUTORY COMPLIANCE.

1. The Service Provider shall comply, at its own cost, with all Applicable Law in respect of the Deployed Personnel, including but not limited to the Employees' Provident Funds & Miscellaneous Provisions Act, 1952 (PF), the Employees' State Insurance Act, 1948 (ESIC), the Minimum Wages Act, 1948, the Payment of Wages Act, 1936, the Payment of Bonus Act, 1965, the Payment of Gratuity Act, 1972, the Contract Labour (Regulation & Abolition) Act, 1970 (where applicable) and the applicable Labour Codes.

2. The Service Provider shall deposit all statutory dues within the prescribed timelines and shall, upon request, furnish the Client with documentary proof of such deposits and of all applicable registrations and licences.
3. The Service Provider shall keep the Client fully and effectively indemnified against any claim, demand, penalty, cost or liability arising out of the Service Provider's non-compliance with Applicable Law in respect of the Deployed Personnel or the Worker Payout.

8. SERVICE CHARGES & PAYMENT.

1. In consideration of the Services, the Client shall pay the Service Charges set out in **Annexure A**, together with Goods and Services Tax (GST) and any other applicable taxes.
2. **Advance Payment Discount:** Notwithstanding Clause 8.3, if the Client elects to pay the Service Charges for the full deployment period in advance, the Client shall be entitled to a discount of five percent (5%) on the invoice amount for that period. The discount shall be computed on the Service Charges (exclusive of GST), and GST shall be levied on the net discounted amount.
3. The Service Provider shall raise monthly invoices, and the Client shall pay each undisputed invoice within **thirty (30)** days of the date of the invoice.
4. Any amount not paid by the due date shall, without prejudice to the Service Provider's other rights, attract interest at **1.5%** per month from the due date until realisation.
5. All payments shall be made by electronic bank transfer to the account designated in writing by the Service Provider. The Client shall not withhold or set off any amount save as expressly permitted herein or by law.

9. REPLACEMENT. Where any Deployed Personnel is found unsuitable, resigns, is absent or is withdrawn, the Service Provider shall arrange a suitable replacement within **three (3)** working days at no additional onboarding cost to the Client, so as to ensure continuity of Services.

10. NON-SOLICITATION. During the term of this Agreement and for a period of **twelve (12) months** thereafter, the Client shall not, whether directly or indirectly, solicit, employ, engage or retain any Deployed Personnel otherwise than through the Service Provider. In the event of any direct engagement in breach of this Clause, the Client shall forthwith pay the Service Provider a conversion / recruitment fee equal to **two (2) months' Service Charges** payable in respect of the concerned personnel, which the Parties agree is a genuine pre-estimate of loss.

11. CONFIDENTIALITY. Each Party shall hold in strict confidence all non-public information of the other Party disclosed in connection with this Agreement, shall use the same solely for the performance of this Agreement, and shall not disclose it to any third party save as required by law. This obligation shall survive the termination or expiry of this Agreement.

12. INDEMNITY & LIMITATION OF LIABILITY.

1. The Service Provider shall indemnify, defend and hold harmless the Client against all claims, losses and liabilities arising from the Service Provider's breach of its statutory obligations relating to the Deployed Personnel or the Worker Payout.
2. The Client shall indemnify, defend and hold harmless the Service Provider against all claims, losses and liabilities arising from unsafe working conditions at the Client's premises or from the Client's directions to the Deployed Personnel.
3. Save in respect of indemnity obligations, breach of confidentiality and the Worker Payout, neither Party shall be liable for any indirect, special or consequential loss, and each Party's aggregate liability under this Agreement shall not exceed the Service Charges paid in the **three (3)** months immediately preceding the event giving rise to the claim.

13. TERMINATION.

1. Either Party may terminate this Agreement without cause by giving **thirty (30)** days' prior written notice to the other Party.
2. Either Party may terminate this Agreement forthwith by written notice if the other Party commits a material breach that remains uncured for **fifteen (15)** days after written notice thereof, or if the other Party becomes insolvent or ceases to carry on business.
3. Upon termination or expiry, the Client shall pay all Service Charges accrued up to the effective date of termination, and clauses which by their nature survive (including Clauses 6, 7, 10, 11 and 12) shall continue in force.

14. TECHNOLOGY PLATFORM & DATA.

1. The Parties acknowledge that the Service Provider provides its Services through a proprietary technology platform, and that the Deployed Personnel are onboarded, managed and paid through such platform.
2. The Service Provider confirms that each Deployed Personnel has, prior to deployment, executed the Worker Onboarding, Payout & Technology Consent (**Annexure C**), consenting to the collection and processing of their personal data and to their participation in the Service Provider's present and future technology-enabled workforce services.
3. Each Party shall process personal data in accordance with the Digital Personal Data Protection Act, 2023 and other Applicable Law.

15. FORCE MAJEURE. Neither Party shall be liable for any failure or delay in the performance of its obligations (other than payment obligations already accrued) caused by events beyond its reasonable control, including acts of God, pandemic, epidemic, government action, lockdown, strike, lock-out or civil commotion.

16. GOVERNING LAW & DISPUTE RESOLUTION. This Agreement shall be governed by and construed in accordance with the laws of India. The Parties shall first endeavour to resolve any dispute amicably; failing which, the dispute shall be referred to and finally resolved by arbitration by a sole arbitrator to be mutually appointed, in accordance with the Arbitration and Conciliation Act, 1996. The seat and venue of arbitration shall be Gurugram, Haryana, and the language shall be English. Subject to arbitration, the courts at Gurugram, Haryana shall have exclusive jurisdiction.

17. MISCELLANEOUS.

1. This Agreement, together with its Annexures and all Work Orders issued hereunder, constitutes the entire agreement between the Parties and supersedes all prior negotiations, understandings and agreements, whether oral or written.
2. No amendment or waiver of any provision shall be valid unless made in writing and signed by the duly authorised representatives of both Parties.
3. Neither Party shall assign or transfer this Agreement or any rights hereunder without the prior written consent of the other Party, such consent not to be unreasonably withheld.
4. Any notice under this Agreement shall be in writing and shall be delivered by hand, registered post or email to the respective addresses of the Parties stated above.
5. If any provision of this Agreement is held to be invalid or unenforceable, the remaining provisions shall continue in full force and effect, and the Parties shall substitute a valid provision reflecting the original intent.
6. Nothing in this Agreement shall constitute either Party as the agent of the other or authorise either Party to bind the other in any manner.

IN WITNESS WHEREOF, the Parties hereto have caused this Agreement to be executed by their respective duly authorised representatives as of the Effective Date first hereinabove written.

For THIRD WAVE LABS PRIVATE LIMITED (Switch)

For [CLIENT NAME]

Authorised Signatory

Name: _____

Designation: _____

Date & Place: _____

Authorised Signatory

Name: _____

Designation: _____

Date & Place: _____

WITNESSES:

1. Name & Signature: _____

2. Name & Signature: _____

ANNEXURE A — SERVICE CHARGES / RATE CARD

Role / Position	No. of Personnel	Monthly Wage per Person (INR)	Service Charge / Margin	Total (excl. GST)
[e.g. Operations Executive]	[]	[]	[%]	[]

Note: All charges are exclusive of GST. Statutory contributions (PF/ESIC) are charged additional to the wage and are payable by the Client. The Worker Payout is disbursed by the Service Provider (Switch) as per Clause 6. Rates are valid for the term unless revised by mutual written agreement.

ANNEXURE B — WORK ORDER FORMAT

Work Order No.		Date	
Role / Position			
Number of Personnel		Skill / Qualification	
Deployment Location			
Deployment Start Date		Duration	
Agreed Rate			
Special Instructions			

ANNEXURE C — WORKER ONBOARDING, PAYOUT & TECHNOLOGY CONSENT

(To be executed by each Deployed Personnel at the time of onboarding.)

I, the undersigned, hereby confirm, declare and consent as follows:

Name: _____

S/o / D/o: _____

Address: _____

Mobile No.: _____ Aadhaar No.: _____

PAN (if any): _____ Bank A/C & IFSC: _____

1. I agree to be engaged and onboarded as personnel of **Third Wave Labs Private Limited** (operating as "Switch") (the "Company"), and to be deployed to render services to the Company's clients as directed by the Company.
2. I understand and agree that the Company is my employer / engager, and that the client to whom I am deployed is not my employer.
3. **Payout through Switch:** I agree and consent that all my wages, stipend, allowances, incentives and any other payout shall be paid to me solely by and through the Company (Switch) via its payroll and technology platform, and I shall not seek or accept any direct payment of wages from any client.
4. **Technology platform & future participation:** I consent to being enrolled on the Company's technology platform / application, and I agree to be a part of the Company's present and future technology-enabled workforce, deployment and gig services, including receiving current and future work and deployment opportunities through such platform.
5. **Data consent:** I consent to the Company collecting, storing, processing and using my personal data (including identity, contact, bank, attendance and biometric/location data as applicable) for onboarding, payroll, deployment, verification and platform operations, in accordance with the Digital Personal Data Protection Act, 2023.
6. I confirm that the information provided by me is true and correct, and I agree to abide by the Company's policies and lawful instructions.

Signature of Worker

Name: _____

Date: _____

For Third Wave Labs Private Limited (Switch)

Authorised Signatory